

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                        |                                     |                                                                                                                                                                                                                                             |
|---------------------------------------------------|------------------------------------------------------------------------|-------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Craig Anderson (I)               | Team:<br>Intake                                                        | CCRB Case #:<br>201401374           | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 02/09/2014 1:10 AM    | Location of Incident:<br>§ 87(2)(b) and the 10th Precinct stationhouse | 18 Mo. SOL<br>8/9/2015              | Precinct:<br>10                                                                                                                                                                                                                             |
| Date/Time CV Reported<br>Mon, 02/10/2014 10:30 PM | CV Reported At:<br>CCRB                                                | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Mon, 02/10/2014 10:30 PM                                                                                                                                                                                      |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. SGT Vincent Fontana | 03556  | 931673 | 010 PCT |
| 2. An officer          |        |        |         |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM Ryan Nichols | 06119     | 950947 | 010 PCT  |

| Officer(s)              | Allegation                                                                                                               | Investigator Recommendation   |
|-------------------------|--------------------------------------------------------------------------------------------------------------------------|-------------------------------|
| A . An officer          | Force: An officer used physical force against § 87(2)(b) at § 87(2)(b) in Manhattan.                                     | A . Complainant Uncooperative |
| B . An officer          | Discourtesy: An officer spoke rudely to § 87(2)(b) at § 87(2)(b) in Manhattan.                                           | B . Complainant Uncooperative |
| C . SGT Vincent Fontana | Discourtesy: SGT Vincent Fontana spoke rudely to § 87(2)(b) and § 87(2)(b) at the 10th Precinct stationhouse.            | C . Complainant Uncooperative |
| D . SGT Vincent Fontana | Abuse: SGT Vincent Fontana threatened § 87(2)(b) and § 87(2)(b) with the use of force at the 10th Precinct stationhouse. | D . Complainant Uncooperative |
| E . SGT Vincent Fontana | Force: SGT Vincent Fontana tightly handcuffed § 87(2)(b) and § 87(2)(b) at the 10th Precinct stationhouse.               | E . Complainant Uncooperative |

### Case Summary

On February 10, 2014, § 87(2)(b) filed this complaint with the CCRB via the on-line website on behalf of himself and § 87(2)(b). § 87(2)(b) was called five times between February 18, 2014 and March 19, 2014. He never answered, and voice messages were left each time. He returned the fifth call on March 19, 2014 and said that he would call back after his trial was over on March 20, 2014. However, he did not call back. Letters sent to § 87(2)(b) on February 18, 2014 and March 7, 2014 have not been returned by the United States Postal Service.

§ 87(2)(b) was called five times between February 27, 2014 and March 31, 2014. He returned the first call, provided a phone statement, and said he would call the next day to schedule an interview. The investigator called him that day, and he again refused to schedule an appointment, stating that he was trying to contact § 87(2)(b) so they could come at the same time. § 87(2)(b) said he would call on March 3, 2014 to schedule an interview, but he did not call that day. § 87(2)(b) did not answer the next three calls, and voice messages were left. Letters sent on March 7, 2014 and March 24, 2014 have not been returned by the United States Postal Service.

§ 87(2)(b) identified his brother, § 87(2)(b) as another victim. A letter sent to the address on § 87(2)(b) § 87(2)(b) arrest report was returned by the United States Postal Service. A Lexis Nexis search provided a phone number and updated address for § 87(2)(b). The phone number was called five times between April 1, 2014 and April 16, 2014. No one answered, and voice messages were left. Letters sent to the address obtained from the Lexis Nexis search on April 1, 2014 and April 8, 2014 have not been returned by the United States Postal Service.

A search of the New York City Department of Correction Inmate Lookup Service on April 22, 2014 showed that § 87(2)(b) and § 87(2)(b) were not incarcerated. To date, the CCRB has been unable to reach § 87(2)(b). Additionally, § 87(2)(b) and § 87(2)(b) have failed to schedule an appointment and have not responded to subsequent contact attempts. Therefore, it is recommended that the case be closed as **complainant uncooperative**.

---

Team: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature \_\_\_\_\_ Print \_\_\_\_\_ Date \_\_\_\_\_

Supervisor: \_\_\_\_\_  
Title/Signature \_\_\_\_\_ Print \_\_\_\_\_ Date \_\_\_\_\_

Reviewer: \_\_\_\_\_  
Title/Signature \_\_\_\_\_ Print \_\_\_\_\_ Date \_\_\_\_\_

Reviewer: \_\_\_\_\_

Title/Signature

Print

Date